

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ROBIN RODRIGUEZ,

Plaintiff,

-against-

SUMMONS
Index#

CITY OF NEW YORK; POLICE OFFICER JULIO A.
APOLINARIS (Shield #30525); SERGEANT EDWARD
FACKLER (Shield #01434),

Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Bronx County as the place of trial. The basis of venue is the place of plaintiff's residence which is Bronx County.

Dated: Brooklyn, New York
January 22, 2018



Amy E. Robinson, Esq.
Stoll, Glickman & Bellina, LLP
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Brooklyn, NY 11217
718 852 3710
Attorney for Plaintiff

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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ROBIN RODRIGUEZ,

Plaintiff, **COMPLAINT &
JURY DEMAND**

-against-

CITY OF NEW YORK; POLICE OFFICER JULIO A.
APOLINARIS (Shield #30525); SERGEANT EDWARD
FACKLER (Shield #01434),

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. § 1983 for the violation of his Fourth, Fifth, Sixth, and Fourteenth Amendment rights, and the laws and Constitution of the State of New York.

2. The claim arises from a November 13, 2016 incident in which New York City Police Department (“NYPD”) officers of the 83rd Precinct, acting under color of state law, violated Mr. Rodriguez’s rights.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff ROBIN RODRIGUEZ is a resident of Kings County, New York.

5. The CITY OF NEW YORK (“City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the

NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention, and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

6. Defendants OFFICER JULIO A. APOLINARIS and SERGEANT EDWARD FACKLER were at all times here relevant police officers of the NYPD, and as such were acting in the capacities of agents, servants, and employees of the City of New York. On information and belief, at all times relevant hereto, Officer Apolinaris and Sergeant Fackler were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed them arresting Plaintiff without probable cause. They are sued in their individual capacities.

7. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

8. Within 90 days of the events giving rise to these claims, Plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of the Notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

9. On November 13, 2016, at approximately 8:00 A.M., Plaintiff Robin Rodriguez was walking on Park Street in Bushwick, Brooklyn.

10. Defendants Officer Apolinaris and Sergeant Fackler approached Mr. Rodriguez on Park

Street near Broadway. The officers stopped, detained, and questioned Mr. Rodriguez.

11. Mr. Rodriguez was committing no crime and had not done anything illegal. There was no legal justification for the stop.

12. Believing that he was free to leave, Mr. Rodriguez walked away from the officers.

13. A few minutes later, near the corner of Ellery Street and Beaver Street, the same defendant officers tackled Plaintiff to the ground, causing him to fall hard on the sidewalk.

14. After tackling Plaintiff, the defendant officers punched and shoved Plaintiff while he was already on the ground.

15. As a result of the tackling, punching, and shoving, Plaintiff suffered injuries to his body, face, hand, and chest.

16. The officers placed Plaintiff in handcuffs and brought him to the 83rd Precinct. The handcuffs were very tight and caused Plaintiff pain. Mr. Rodriguez asked the officers to loosen the handcuffs but his requests were ignored.

17. The officers misrepresented to the Kings County District Attorney's Office that Plaintiff had committed the offenses of assault, obstructing governmental administration, resisting arrest, disorderly conduct, and harassment. Plaintiff had not committed any of these offenses.

18. Officer Apolinaris, the deponent in the criminal complaint, falsely swore that Plaintiff "did resist a lawful arrest by flailing [his] arms." Plaintiff did not flail his arms.

19. Relying on the false information provided by the defendant police officers, the Kings County District Attorney's Office prosecuted and overcharged Mr. Rodriguez.

20. Plaintiff was arraigned in Kings County Criminal Court.

21. The Honorable Lorna McAllister set bail at \$20,000 bond over \$10,000 cash.

22. Mr. Rodriguez was taken into the custody of the New York City Department of Correction (“DOC”) and placed at the Otis Bantum Correctional Center on Rikers Island.

23. Plaintiff remained incarcerated until approximately November 18, 2016.

24. Plaintiff continued to contest the charges for several months. On May 26, 2017, the case was dismissed and sealed.

25. At all times during the events described above, the defendant officers were engaged in a joint venture and formed an agreement to violate Plaintiff’s rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

26. During all of the events above described, Defendants acted maliciously and with intent to injure Plaintiff.

DAMAGES

27. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution;
- b. Violation of his rights under Article I of the New York State Constitution;
- c. Physical pain and suffering;
- d. Emotional trauma and suffering, including fear, embarrassment, humiliation, frustration, extreme inconvenience, shame, and anxiety;
- e. Financial, economic and employment loss; and
- f. Deprivation of his liberty.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

28. The above paragraphs are here incorporated by reference.

29. By tackling, punching, shoving, and tightly handcuffing Plaintiff, Defendants used excessive force against him, and failed to intervene in each other's obviously illegal actions.

30. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted and overcharged.

31. The individual defendants fabricated false evidence against Plaintiff and forwarded such false evidence to the Kings County District Attorney's Office, and failed to intervene in each other's obviously illegal actions.

32. Defendants were aware or should have been aware of the falsity of the information used to prosecute Plaintiff.

33. As a result of Defendant's false evidence, Plaintiff was criminally charged and deprived of his liberty for approximately six months.

34. All charges against Plaintiff were dismissed in May 2017.

35. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to Plaintiff under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.

36. Plaintiff was damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

UNLAWFUL SEIZURE AND FALSE IMPRISONMENT

37. The above paragraphs are here incorporated by reference.

38. By stopping, detaining, and questioning Plaintiff, the defendants, their officers, agents, servants and employees, subjected Plaintiff to an unlawful seizure and false imprisonment, and

deprivation of liberty without probable cause.

39. Defendants intended to confine Plaintiff, Plaintiff was conscious of his confinement, and did not consent to his confinement.

40. The confinement was not privileged.

41. Defendants, their officers, agents, servants and employees, were responsible for Plaintiffs' stop, detention, and imprisonment during this period of time.

42. The charges against Plaintiff were dismissed.

43. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

THIRD CAUSE OF ACTION
MALICIOUS PROSECUTION

44. The above paragraphs are here incorporated by reference.

45. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.

46. Defendants did not have probable cause to initiate criminal proceedings.

47. The proceedings were terminated in Plaintiff's favor in May 2017, when all charges were dismissed and sealed.

48. Defendants have deprived Plaintiff of his civil, constitutional, and statutory rights and have conspired to deprive him of such rights. They are liable to Plaintiff under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.

49. As a result of the malicious prosecution implemented by the defendants, Plaintiff was damaged.

FOURTH CAUSE OF ACTION
ASSAULT & BATTERY

50. The above paragraphs are here incorporated by reference.

51. By tackling, punching, shoving, and tightly handcuffing Plaintiff, Defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

52. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

53. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

FIFTH CAUSE OF ACTION
RESPONDEAT SUPERIOR

54. The above paragraphs are here incorporated by reference.

55. Defendants' tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

56. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiffs demand judgment against Defendants as follows:

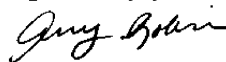
- a. On the First Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- b. On the Second Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- c. On the Third Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- d. On the Fourth Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- e. On the Fifth Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- f. For such other relief as this court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: January 22, 2018
Brooklyn, New York

Respectfully yours,



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